

VIRTUAL OFFICE AGREEMENT

This Virtual Office Agreement ("Agreement") is entered into and effective as of _____ ("Effective Date") between _____ ("Landlord") and _____ ("Tenant") provided below. Landlord and Tenant hereby agree as follows:

The Nature of the Agreement

Tenant is interested in leasing a virtual office space from Landlord at its premises located at _____ ("Premises"). The use of the Premises is offered to Tenant conditioned on Tenant's acceptance, without modification, of the terms and conditions contained in this Agreement. The whole of the Premises remains the property of the Landlord and remains in the Landlord's sole possession and control. Tenant acknowledges that this Agreement creates NO tenancy interest, leasehold or other real property interest in Tenant's favor with respect to the Premises.

Terms and Conditions

1. Term. This Agreement shall be valid for ____ months, beginning on _____ ("Term") and upon expiration of the Term, shall continue on a month-to-month basis.
2. Rent. Tenant agrees to pay monthly rent in installments as follows:
 - a. Initial rent due upon execution of this Agreement: \$ _____ ;
 - b. Remaining rents due on the monthly anniversary of the Term: \$ _____ (collectively "Rent").
 - c. All Rent payments are required and made automatically through our Auto-Pay system.
3. Security Deposit. Tenant shall deposit with Landlord upon execution hereof: \$ _____ as a security of the Tenant's faithful performance of Tenant's obligations pursuant to this Agreement ("Security Deposit"). Landlord may use the Security Deposit towards any default or any sum Tenant owes Landlord because of this agreement. If Landlord uses the Security Deposit, Landlord will provide Tenant a written description of use, and Tenant has 10 business days to replenish the Security Deposit. The Security Deposit is non-refundable. Landlord will use the first payment Tenant paid as the Security Deposit.
4. Virtual Office Address. The virtual office address will be _____ ("Virtual Office"). Tenant may use the address in connection with its business.
5. Premises Hours of Operation. The Premises is open for business from Monday to Friday 8:30 AM to 4:30 PM. The Premises is unavailable for use on January 1, July 4, Thanksgiving Day and Christmas Day or the recognized bank holiday. Landlord reserves the right to close the Premises at any time and in its sole discretion.
6. Conference & Office Room Usage. Landlord may, upon request from Tenant, allow Tenant to hire offices, meeting rooms and conference services ("Facilities") at the Premises on a daily or hourly basis. Use of any Facilities will be subject to:
 - a. Availability of the Facilities;
 - b. Payment of all fees and charges incurred in reserving and/or using the Facilities;

c. Compliance with the terms and conditions applicable to the Facilities; and

d. Execution of Office Rental Agreement.

7. Compliance with Law. Tenant shall comply with all applicable statutes, ordinances, rules, regulations, orders, covenants, and restrictions that any local governments, state or federal agency may require Tenant to comply with. If Tenant does not comply with the law, Landlord reserves the right to immediately terminate this Agreement.

8. Indemnification. Tenant agrees to indemnify and defend Landlord from any loss, expense, cost, liability, demand or claim of any kind or nature for injury to any person or property as a result of the operations of Tenant and its use of the Premises and common areas, specifically including, without limitation, any claims or causes of action by employees, agents, contractors, guests, or customers of Tenant. With respect to the foregoing, Tenant specifically agrees to hold Landlord harmless and/or indemnify Landlord from any and all attorney's fees or other costs associated therewith. Landlord shall not be liable for liability or damage claims for injury to persons (including clients of Tenant) or property (including property of Tenant's customers), and Tenant agrees to indemnify and defend Landlord from any such claims. Tenant indemnifies Landlord of any loss of business, loss of revenue, or loss of profits, arising out of any agreement with Landlord.

9. Confidentiality. Tenant recognizes that it may, in the course of obtaining or using the Premises, come into possession of or learn confidential and proprietary business information ("Confidential Information") about Landlord. Tenant agrees that during the Term of this Agreement and for a period of 2 years thereafter: (a) Tenant shall provide, at a minimum, the care to avoid disclosure of unauthorized use of Confidential Information as is provided, but in no event less than a reasonable standard of care; (b) Tenant will use Confidential Information solely for the purposes of this Agreement; and (c) Tenant will not disclose Confidential Information to any third party without the express prior written consent of the Landlord.

10. Ownership. All programs, services, processes, designs, software, technologies, trademarks, trade names, inventions and materials comprising the Premises are wholly owned by the Landlord.

11. Late Payments.

a. On the 6th day of the month, if Rent is not paid, Landlord will charge a \$25.00 late fee + \$5.00 per day fee (from the 6th day moving forward) in addition to normal Rent.

b. If payment of Rent lapses by more than 30 days, Tenant acknowledges and understands that Tenant may lose access to Tenant's assigned suite number as indicated herein. Such reassignment of Tenant's suite number shall not constitute a breach by Landlord.

12. Default. Each of the following events shall constitute a default or breach of this Agreement by Tenant and may result in the Termination of this agreement:

a. If Tenant shall file a petition in bankruptcy, or for reorganization under any bankruptcy act, or shall be the subject of an involuntary bankruptcy filing.

b. If Tenant disables Auto-Pay feature or otherwise does not pay Rent or other monies owed by the 5th day after which Rent or other monies are due.

c. A violation of any federal, state or local laws or regulations by Tenant, including without limitation, environmental laws.

d. If Tenant shall fail to perform or comply with any other term or condition of this Agreement .

e. If Tenant's actions or omissions result in the filing of a construction lien or other encumbrance or lien on Landlord's interest in the above-described Premises.

f. If Tenant becomes a nuisance (due to noise, smell, etc.), negatively affecting other tenants' ability to conduct business.

g. If Tenant conducts nefarious business practices such as, but not limited to: pornography, predatory business practices, creating websites showing mug shots, pyramid or lead generation schemes, solicitation of businesses en mass, and/or brings undesired attention to the Landlord's office building and the tenants within.

13. Notice. Any notice required to be given shall be in writing (email inclusive).

14. Attorney Fees. Should legal action be required to enforce any of the terms and conditions of this Agreement, or should legal action be instituted relative to this Agreement, the prevailing party in said action shall recover attorney's fees and costs in an amount to be fixed by the Court.

15. Applicable Law. This Agreement shall be governed by and constructed in accordance with the laws of the state of Idaho. The Parties hereby agree that in the event of any legal or equitable action involving this Agreement, Kootenai County, Idaho shall have exclusive jurisdiction to hear such action and shall have jurisdiction over the parties.

16. Time of the Essence. Time if of the essence in all provisions of this Agreement.

17. Entire Agreement. This Agreement contains the entire agreement between the parties and cannot be changed except by a written instrument subsequently executed by the parties hereto. This Agreement and the terms and conditions hereof apply to and are binding on the heirs, legal representatives, successors and assigns of both parties.

18. Termination of Service. Landlord reserves the right to terminate this Agreement for any reason or no reason without notice to Tenant. Tenant may terminate this Agreement by providing 30 days notice in writing (email inclusive) to Landlord.

IN WITNESS WHEREOF, this Agreement has been executed with the Effective Date written above.

Landlord

Tenant

IT-TH

By: (Signature)

By: (Signature)

Print Name

Print Name

Title:

Title: